

SENATE BILL 205

By Massey

AN ACT to amend Tennessee Code Annotated, Title 56;
Title 63; Title 68 and Title 71, relative to coverage
of biomarker testing for preeclampsia.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Biomarker" means a characteristic that is objectively measured and
evaluated as an indicator of normal biological processes, pathogenic processes,
or pharmacologic responses to a specific therapeutic intervention, including, but
not limited to, gene mutations, protein expression, known gene-drug interactions
for medications, and characteristics of genes;

(2) "Biomarker test" or "biomarker testing" means the analysis of a
patient's tissue, blood, or other biospecimen for the presence of a biomarker
using a method of analysis approved by the federal food and drug administration
(FDA), including, but not limited to, single-analyte tests, multiplex panel tests,
whole genome sequencing, protein expression, whole exome, and whole
transcriptome;

(3) "Health benefit plan" means a plan of health insurance coverage
under the medical assistance program;

(4) "Health insurance carrier":

(A) Means an entity subject to title 56, or subject to the jurisdiction
of the commissioner of commerce and insurance, that contracts with

healthcare providers in connection with a plan of health insurance, health benefits, or health services; and

(B) Includes a vendor or an entity that provides a health benefit plan of coverage under TennCare or a successor program provided for pursuant to this chapter; and

(5) "TennCare health benefit plan" means a health benefit plan issued by a health insurance carrier pursuant to an agreement with the division of TennCare to provide health insurance coverage for an enrollee in the medical assistance program.

(b) Notwithstanding another law to the contrary, a TennCare health benefit plan renewed or issued on or after July 1, 2025, by a health insurance carrier shall provide coverage and reimbursement for biomarker testing for preeclampsia as provided in this section.

(c) A pregnant woman may be screened for preeclampsia using biomarker testing when ordered by the pregnant woman's attending physician.

(d) Each preeclampsia biomarker test must be conducted by the physician or other healthcare provider who is providing prenatal care for such pregnant woman according to nationally recognized clinical practice guidelines and consensus statements.

(e) The division of TennCare may promulgate rules and take necessary administrative action to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5. The division of TennCare may submit to the federal centers for medicare and medicaid services (CMS) new waiver applications and amendments to existing waivers

necessary to ensure federal financial participation for medicaid coverage pursuant to this section.

SECTION 2. For purposes of rulemaking and other administrative actions, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.